

Westhampton Board of Health
July 13, 2026

Katch Bacheller, Chair
Robby Armenti
Heather Livingston
Brian Chapdelaine, Health Agent (by phone)
Sydney Lewandowski, Health inspector (by phone)
Marylou Burgess (guest)

Meeting was scheduled to begin at 5:45 p.m.; it started at 6:05 p.m. due to Zoom/connectivity issues.

Agenda item 1: May 2026 BOH minutes

RA did not receive the emailed minutes; requested HL to send minutes to her BOH email address.

RA requested to hold off on accepting the minutes from May 2026 until the August meeting.

Agenda item 2: 26 North Road

SL inspected and couldn't determine any leach into the water; system is old (1950s); didn't do a Title 5 so couldn't classify if it failed. Ground looked relatively untouched. (Discussed last in April 2026—KB asked SL to send a letter to owner, which she did.)

KB requested Marylou to let the BoH know if she sees effluent, let us know.

Agenda item 3: 225 NW Road, 61 Chesterfield Road septic Title 5

BC scheduled and incorporated inspection time on 7.22—sent letter out last week; mentioned coordinating with Lily on-site

Agenda item 4: Outlook Farm (Next steps for the items owner didn't fix by 6/18)

At inspection, owner told BC he didn't have time to correct the items indicated by Health Agent's review and didn't feel it was important. BC feels he's going to continue delaying. KB will talk to the selectboard on the 27th about this issue. KB would like to set up a Zoom with BC and Mike.

BC: BoH can suspend/revoke his permit if owner is not following the law. If he continues operating after we suspend/revoke, we send a cease and desist. It would focus on the violations identified on pages 3 & 4 of the report. Health Agent gave him almost an extra month to make minimal corrections. BC told him he would have the BoH request him to appear.

KB requested BC to serve owner a summons to appear in front of the BoH at August 10 meeting. BC will send a certified letter.

Halted regular meeting at 6:15 p.m. Called to order scheduled public meeting at 6:15 p.m.

Agenda item 5: 70 Peninsula Road well/septic variance

SL: Properties around Pine Lake are so small. Septic designer created plan for new septic for the property that meets all well setbacks for abutting properties, but the well setback doesn't meet required distance for his own property. It's supposed to be 100 ft setback with 50 feet to the tank; the well is 43 feet from tank and less than 100 feet from soil management system. Property owner believes the requirement is manifestly unjust because the septic designer's plan is the only solution for the property to upgrade the septic system. Owner and septic designer both believe it's all they can do with the system and they believe the variance is appropriate because it doesn't affect any of the abutters' wells.

SL indicated her belief that the variance is fair; owner has a pretreatment tank that oxygenates the effluent. A separate tank filters a lot of the effluent and causes it to separate so it's pretreated when it gets in the tank.

HL: Motioned to approve the request variance as proposed by the owner. (SL has the exact wording for the variance request).

RA: Seconded the motion.

No objections or additional discussion; motion passed.

Closed public meeting at 6:27; Reopened BoH meeting at 6:28 p.m.

Agenda item 6: 360 Main Road

Nothing new to report; the smell has ceased to be a problem.

Agenda item 7: Battery storage regulations coordinating with other Westhampton and area groups

Goshen BoH met last Monday and Glen is a resident and was in attendance. Septic and well regulations were the focus of the meeting. They're pushing battery storage back until September

KB: Had a discussion with Doug Finn and think we should wait for the planning board to get their stuff done; do we need to talk about this with other towns in an executive committee meeting?

BC: If it's separate from Foothills Health District, that's fine. He encouraged them to attend the FHD meetings.

Agenda item 8: Septic and Well Regulations draft

KB meeting with HL and Donna from FHD to discuss proposed septic regulations.

Agenda item 9: Body Art regulations

Tabled discussion until August

Agenda item 10: 61 Chesterfield—sent out a message a couple of weeks ago, haven't hear back yet. [See note below from June minutes.]

61 Chesterfield Road septic permit

- Brian Belicki (designer) hasn't heard from homeowner since he submitted the plan in 2023. It was a voluntary upgrade—they were trying to sell house but didn't move forward.
- SL has heard reports of a failed septic system. Suggest BoH archive the old septic plan as it's now past the three-year approved timeframe. SL will put an order in for a title 5 inspection.

Meeting adjourned at 6:38 p.m.